

REVENUE AND DISASTER MANAGEMENT DEPARTMENT

Compilation of RFCTLARR Act, 2013, Rules and related Government Orders

Right to Fair Compensation and Transparency in Land Acquisition, Rehabilitation and Resettlement Act, 2013 (Central Act 30 of 2013) & Tamil Nadu Rules, 2017

PREFACE: The Government of India has enacted the Right to Fair Compensation and Transparency in Land Acquisition, Rehabilitation and Resettlement Act, 2013 (Central Act 30/2013) (RFCTLARR Act, 2013), repealing the erstwhile Land Acquisition Act, 1894. This Act came into force on 01.01.2014. Under the new Act, rehabilitation and resettlement have become an integral part of the land acquisition process. In order to implement the RFCTLARR Act, 2013, the Tamil Nadu State Rules have been framed and notified in Tamil Nadu Government Gazette.

CHAPTER I: PRELIMINARY 1. Short title, extent and commencement: This Act may be called the Right to Fair Compensation and Transparency in Land Acquisition, Rehabilitation and Resettlement Act, 2013. It extends to the whole of India. 2. Application of the Act: The provisions of this Act relating to land acquisition, compensation, rehabilitation and resettlement, shall apply when the appropriate Government acquires land for its own use, hold and control, including for Public Sector Undertakings and for public purpose: (a) For strategic purposes relating to naval, military, air force, and armed forces of the Union, including central paramilitary forces or any work vital to national security or defence of India; (b) For infrastructure projects including agro-processing, warehousing, cold storage, industrial corridors, mining, water harvesting, sanitation, health care, tourism, and transportation; (c) For public-private partnership (PPP) projects where ownership continues to vest with Government (requires prior consent of at least 70% of affected families); (d) For private companies for public purpose (requires prior consent of at least 80% of affected families).

CHAPTER II: DETERMINATION OF SOCIAL IMPACT AND PUBLIC PURPOSE (SIA) 4. Preparation of Social Impact Assessment study: Whenever the appropriate Government intends to acquire land for a public purpose, it shall consult the concerned Panchayat, Municipality or Municipal Corporation and carry out a Social Impact Assessment (SIA) study in consultation with them. The SIA evaluates whether the project serves a genuine public purpose, the minimum extent of land required, number of affected families, and displacement impact. The SIA study must be completed within 6 months. 5. Public hearing for Social Impact Assessment: Public hearings shall be conducted in the local language in affected areas to ascertain views of affected families. 7. Appraisal of SIA report by an Expert Group: An independent multi-disciplinary Expert Group shall evaluate the SIA report within 2 months.

CHAPTER III: SPECIAL PROVISIONS TO SAFEGUARD FOOD SECURITY 10. Special Provision to safeguard food security: Save as otherwise provided, no irrigated multi-cropped land shall be acquired under this Act. Acquisition of irrigated multi-cropped land shall in no case exceed 20% of the total extent of irrigated multi-cropped land in a district or State. An equivalent area of culturable wasteland shall be developed for agricultural purposes.

CHAPTER IV: NOTIFICATION AND ACQUISITION 11. Publication of preliminary notification: Whenever land is required for a public purpose, a preliminary notification in Form IV shall be published in the Official Gazette, two daily local newspapers, and uploaded on the website. 15. Hearing of

objections: Interested persons may object to acquisition within 60 days of preliminary notification. 16. Preparation of Rehabilitation and Resettlement Scheme by Administrator: Administrator shall conduct a census of affected families and prepare a draft R&R; scheme. 19. Publication of declaration: Declaration under section 19 shall be published after Requiring Body deposits at least 50% of the cost of acquisition.

CHAPTER V: REHABILITATION AND RESETTLEMENT AWARD 26. Determination of market value of land by Collector: Market value is assessed as higher of: (a) market value specified in Indian Stamp Act 1899; (b) average sale price of similar land in nearest village over preceding 3 years; or (c) consented compensation amount for PPP/private projects. 27. Determination of amount of compensation: Collector calculates total compensation including all assets attached to land. 28. Parameters considered by Collector: Market value, damage to standing crops/trees, severance damage, injuriously affecting other property, and relocation expenses. 30. Award of Solatium: Collector shall impose a Solatium amount equivalent to 100% (one hundred per cent) of the total compensation amount in addition to market value.

TAMIL NADU R&R; RULES 2017 & NOTIFICATIONS Fixed Multiplier Factors for Rural Areas (G.O. Ms. No. 300, Rev & DM Dept 2017): 1. Within 30 Kilometres from Urban Area: Factor = 1.25 (250% total multiplier). 2. Beyond 30 Km and within 50 Km: Factor = 1.50 (300% total multiplier). 3. Beyond 50 Kilometres: Factor = 2.00 (400% total multiplier).